

BEFORE THE FEDERAL MARITIME COMMISSION

COOL LIVING LLC, Complainant

v.

ALPI U.S.A., INC. and ALPI AIR & SEA A/S, Respondents.

DOCKET NO. 25-28

**APPENDIX TO COMPLAINANT'S MOTION TO QUASH NOTICES OF
DEPOSITION OR, IN THE ALTERNATIVE, FOR A PROTECTIVE ORDER**

Prepared by Complainant Cool Living LLC

Dated: June 10, 2026

TABLE OF CONTENTS

Pages and Exhibits are numbered sequentially

Exhibit A. Respondents' Email Transmitting Notices of Deposition (June 5, 2026, 12:16 PM ET)

Email from Daniel Bang to Holland & Knight transmitting the Notices.

Exhibit B. Email Transmitting Notices of Deposition to Cool Living (June 6, 2026, 9:11 AM ET)

Email from Holland & Knight transmitting the Notices to Cool Living.

Exhibit C. Email Transmitting Summary of May 29 call between Counsel (May 29, 2026, 1:22 PM ET)

Email from Holland & Knight transmitting a summary of the call between Chris Nolan and ALPI Counsel.

Exhibit D Order on Motion to Withdraw (Served June 8, 2026)

Presiding Officer's Order granting in part H&K's motion to withdraw.

Exhibit E. Notices of Deposition of Anna Farkas and Tony Hopkins (June 5, 2026)

The two Notices of Deposition at issue.

Exhibit F. Cool Living Meet-and-Confer Email (June 8, 2026)

Complainant's Rule 71(a) conferral email to Respondents' counsel.

Exhibit G. Respondents' Response to Meet-and-Confer (June 8, 2026)

Respondents' email declining to withdraw the Notices.

Exhibit H. Cool Living Reply Objections (June 10, 2026)

Complainant's reply objections and declining the proposed dates.

EXHIBIT A

Respondents' Email Transmitting Notices of Deposition (June 5, 2026, 12:16 PM
ET)

Email from Daniel Bang to Holland & Knight transmitting the Notices

From: daniel.bang@usadenmarklaw.com

To: chris.nolan@hklaw.com

Date: 6/5/2026 4:16:58 PM

Subject: Re: Dkt. No. 25-28 - Cool Living LLC v. ALPI U.S.A., Inc. and ALPI Air & Sea A/S - Withdrawal of Counsel

Attachments: [DOCKET NO. 25-28 NOTICE OF DEPOSITION ANNA FARKAS.pdf](#)
[DOCKET 25-28 NOTICE OF DEPOSITION OF TONY HOPKINS.pdf](#)

[External email]

Thank you for the update, Chris.

As no extension has been agreed upon, please find enclosed the notices of deposition for Hopkins and Farkas. We will be happy to work with you and your team on scheduling the depositions, including virtual depositions, and on any potential extension of the deadlines.

Daniel Emil Lindberg Bang

Advokat (L) (Denmark) | Attorney at Law (New York)

USA DENMARK LAW | www.usadenmarklaw.com

(+45) 32 75 93 31 | (+1) 646-580-9880

USA Denmark Law Advokat ApS | Martin Dahlgaard Attorney P.C.

On Thu, Jun 4, 2026 at 11:26 PM chris.nolan@hklaw.com <chris.nolan@hklaw.com> wrote:

Dear Daniel,

Allow me to respond. We were unable to receive authorization from Cool Living to file the extension motion in the FMC action. There is little more I can add but if you need to speak tomorrow I am out of the office and reachable on my mobile at 646-284-8996.

Best regards,
Chris

From: Daniel Bang <daniel.bang@usadenmarklaw.com>

Sent: Thursday, June 4, 2026 20:39

To: Higgs, Ashleigh T (WAS - X75683) <Ashleigh.Higgs@hklaw.com>

Cc: Nolan, Christopher R (NYC - X73307, CHI - X66515) <chris.nolan@hklaw.com>; michael.kohler <michael.kohler@millermartin.com>

Subject: Re: Dkt. No. 25-28 - Cool Living LLC v. ALPI U.S.A., Inc. and ALPI Air & Sea A/S - Withdrawal of Counsel

[External email]

Hi Ashleigh,

We saw that the motion to withdraw was filed. Can you share an update on when the motion to extend discovery will be filed as well? Or did your client not agree to the extension?

Daniel Emil Lindberg Bang

Advokat (L) (Denmark) | Attorney at Law (New York)

USA DENMARK LAW | www.usadenmarklaw.com

(+45) 32 75 93 31 | (+1) 646-580-9880

USA Denmark Law Advokat ApS | Martin Dahlgaard Attorney P.C.

On Thu, Jun 4, 2026 at 3:28 PM Ashleigh.Higgs@hklaw.com <Ashleigh.Higgs@hklaw.com> wrote:

Dear Secretary Eng,

Please find attached for filing a Motion to Withdraw as Counsel for Complainant Cool Living LLC.

Respectfully submitted,

Ashleigh

Ashleigh Higgs | [Holland & Knight](#)

Associate

Holland & Knight LLP

800 17th Street N.W., Suite 1100 | Washington, District of Columbia 20006

Phone +1.202.469.5683 | Fax +1.202.955.5564

ashleigh.higgs@hklaw.com | www.hklaw.com

[Add to address book](#) | [View professional biography](#)

NOTE: This e-mail is from a law firm, Holland & Knight LLP ("Holland & Knight"), and is intended solely for the use of the individual(s) to whom it is addressed. If you believe you received this e-mail in error, please notify the sender immediately, delete the e-mail from your computer and do not copy or disclose it to anyone else. If you are not an existing client of Holland & Knight, do not construe anything in this e-mail to make you a client unless it contains a specific statement to that effect and do not disclose anything to Holland & Knight in reply that you expect it to hold in confidence. If you properly received this e-mail as a client, co-counsel or retained expert of Holland & Knight, you should maintain its contents in confidence in order to preserve the attorney-client or work product privilege that may be available to protect confidentiality.

NOTE: This e-mail is from a law firm, Holland & Knight LLP ("Holland & Knight"), and is intended solely for the use of the individual(s) to whom it is addressed. If you believe you received this e-mail in error, please notify the sender immediately, delete the e-mail from your computer and do not copy or disclose it to anyone else. If you are not an existing client of Holland & Knight, do not construe anything in this e-mail to make you a client unless it contains a specific statement to that effect and do not disclose anything to Holland & Knight in reply that you expect it to hold in confidence. If you properly received this e-mail as a client, co-counsel or retained expert of Holland & Knight, you should maintain its contents in confidence in order to preserve the attorney-client or work product privilege that may be available to protect confidentiality.

EXHIBIT B

Email Transmitting Notices of Deposition to Cool Living (June 6,
2026, 9:11 AM ET)

Urgent: Deposition Notices Issued for Hopkins and Farkas in FMC Action and Cool Living's Four Considerations How to Proceed

chris.nolan@hklaw.com <chris.nolan@hklaw.com>

6 June 2026 at 15:11

To: "tony@thatcooliving.com" <tony@thatcooliving.com>, "anna@thatcooliving.com" <anna@thatcooliving.com>

Cc: "Robert.Burns@hklaw.com" <Robert.Burns@hklaw.com>

Dear Tony and Anna,

H&K's Professional Standards Partner has approved my writing to you so long as the communication focuses only on the FMC Action as H&K must advise you of an ALPI action yesterday. Counsel for ALPI sent an email enclosing the attached notices of deposition to take the testimony of Anna Farkas on Thursday, June 11, 2026, and Tony Hopkins on Friday, June 12, 2026. The notices of deposition provide that it will be taken remotely, begin at 9:30 AM Eastern, and that it is seven hours of testimony (that is the statutory limit in the FMC). The ALPI email advised, "[a]s no extension has been agreed upon, please find enclosed the notices of deposition for Hopkins and Farkas. We will be happy to work with you and your team on scheduling the depositions, including virtual depositions, and on any potential extension of the deadlines." This means the start time can be moved, or the dates moved, to address reasonable accommodations needed.

The notices of deposition being sent are a result of Cool Living declining to authorize the joint extension of time for one month while Cool Living's substitute counsel or Cool Living itself receives the transition file and takes any further actions it desires. H&K disagrees with Cool Living's strategy not to authorize the one month extension motion. Under the FMC Action Presiding Officer's January 30, 2026, Scheduling Order, the "close of all discovery" remains Saturday, June 13, 2026.

H&K advises that Cool Living has the following considerations now in light of the joint extension motion not having been submitted despite H&K's recommendation to do so and ALPI having agreed to the extension:

1. **Termination of H&K:** Cool Living may terminate H&K now in the FMC Action and proceed with the FMC deposition and any discovery work directly as a company with no lawyer representation.
2. **Substitution of Counsel:** Cool Living may substitute its new counsel into the FMC proceeding. Under this option, H&K will work with your substituted counsel to submit the papers on Monday, June 8, 2026, to the FMC and transfer the file so that it may take the next steps.
3. **Dismissal of the FMC Action:** In reviewing an email to Mr. Burns, Cool Living advised that it filed the FMC proceeding only because of H&K's advice. H&K recommended Cool Living file the FMC action because there are Shipping Act and OSRA violation allegations against ALPI, separate of the ALPI/Cool Living contract dispute in the NYS Action. But Cool Living is under no obligation to continue with the FMC action if it desires not to. A motion to voluntarily dismiss the FMC action is possible. Should you choose this option, H&K agrees to advise ALPI in a meet and confer call to seek their agreement to proceed with the motion with no opposition, and H&K would submit the motion as soon as practicable after that call on Monday, June 8, 2026.
4. **H&K Defends Depositions Noticed and Takes an ALPI deposition:** H&K's motion to withdraw is pending in the FMC action. Before it is granted, H&K can continue to defend Cool Living in the Hopkins and Farkas depositions noticed and take a deposition of an ALPI witness subject to the terms below (see ***Terms** section). If Cool Living desires H&K to defend the depositions, the undersigned, Chris Nolan, will defend both depositions and arrange a preparation session before the depositions (the sessions and the deposition will be remotely on Teams or Zoom). Separately, if Cool Living desires H&K to take a deposition, H&K would do so subject to the terms below (see ***Terms** section).

***Terms:** H&K is able to proceed with option four so long as Cool Living pays for its legal services and executes an engagement letter amendment. Concerning the legal services, the hourly rates for Mr. Nolan and Ms. Higgs will remain the same they are now. Cool Living will need to pay a retainer fee in advance for this deposition defense and taking work in the amount of \$25,000. An amended engagement letter for the FMC proceeding is also necessary to address the deposition defense of Ms. Farkas in light of the statement by Cool Living that no attorney-client relationship exists with Ms. Farkas, in reviewing an email to Mr. Burns.

Please review these four options and advise us how you wish to proceed or any questions you have only with respect to the FMC Action and the items above. Because of the limited timeline, we must have a response as soon as practicable on Sunday, June 7, 2026, or the very latest, the early morning (Eastern time), on Monday June 8, 2026.

Regards,

Chris

Christopher Nolan | **Holland & Knight**

Partner

Holland & Knight LLP

787 Seventh Avenue, 31st Floor | New York, NY 10019

Office: 212.513.3307 | Cell: 646-284-8996

chris.nolan@hklaw.com | www.hklaw.com

[Add to address book](#) | [View professional biography](#)

NOTE: This e-mail is from a law firm, Holland & Knight LLP ("Holland & Knight"), and is intended solely for the use of the individual(s) to whom it is addressed. If you believe you received this e-mail in error, please notify the sender immediately, delete the e-mail from your computer and do not copy or disclose it to anyone else. If you are not an existing client of Holland & Knight, do not construe anything in this e-mail to make you a client unless it contains a specific statement to that effect and do not disclose anything to Holland & Knight in reply that you expect it to hold in confidence. If you properly received this e-mail as a client, co-counsel or retained expert of Holland & Knight, you should maintain its contents in confidence in order to preserve the attorney-client or work product privilege that may be available to protect confidentiality.

2 attachments



DOCKET 25-28 NOTICE OF DEPOSITION OF TONY HOPKINS.pdf

165K



DOCKET NO. 25-28 NOTICE OF DEPOSITION ANNA FARKAS.pdf

123K

EXHIBIT C

Email Transmitting Summary of May 29 call between Counsel (May 29,
2026, 1:22 PM ET)



Cool Living/H&K Call re: May 12, 2026 Emails

Robert.Burns@hklaw.com <Robert.Burns@hklaw.com>
To: "tony@thatcooliving.com" <tony@thatcooliving.com>
Cc: "anna@thatcooliving.com" <anna@thatcooliving.com>

29 May 2026 at 19:22

Dear Mr. Hopkins,

The call between H&K and counsel for ALPI concluded this morning and I have consulted with Mr. Nolan. Mr. Nolan advised counsel for ALPI that H&K will be filing a motion for substitution or withdrawal of counsel in the FMC Action and the NYS Action. Mr. Nolan advised that Cool Living advises they are consulting with lawyers concerning substitution of counsel but that counsel had not been retained yet. Mr. Nolan asked counsel for ALPI if they will consent to the substitution or withdrawal as counsel and they agreed. In the FMC Action, ALPI counsel inquired if an extension of time would be advisable in light of the June 13 closure of discovery as they have one deposition they are interested in taking, for you, Tony Hopkins. Mr. Nolan advised that the FMC judges prefer joint motions for extensions and that with substitute counsel or withdrawal with Cool Living representing itself that would be sensible. As to any depositions in the FMC action, Mr. Nolan advised that would be a matter for substituted counsel or Cool Living to address.

[REDACTED]

[REDACTED]

When counsel for ALPI inquired when H&K would move to withdraw as counsel, Mr. Nolan advised that the papers are drafted for substitution or withdrawal, and that we would share the draft with Cool Living so that we can proceed on Monday, June 1 with withdrawal filings. Counsel for ALPI understood, and inquired so that the FMC Action Judge has suitable notice.

###

Separate from this summary, [REDACTED]

[REDACTED]

[REDACTED]

On the May 29 ALPI counsel call, as noted above, Mr. Nolan did not address the preliminary conference discovery. As previously advised in my email, Mr. Nolan accepted the call to advise that H&K will be withdrawing as counsel and advised that right at the beginning of the call. Counsel for ALPI did not request a reason for the substitution or withdrawal, and Mr. Nolan did not provide one. [REDACTED]

Thanks, and best regards,

MTQ-9

EXHIBIT D

Order on Motion to Withdraw (Served June 8, 2026)

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

COOL LIVING LLC, *Complainant*

v.

ALPI U.S.A., INC. AND ALPI AIR & SEA A/S, *Respondents.*

DOCKET NO. 25-28

Served: June 8, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge.*

ORDER ON MOTION TO WITHDRAW

This matter came on for consideration of Motion to Withdraw filed June 4, 2027, by Holland & Knight LLP, Christopher R. Nolan, and Ashleigh T. Higgs (collectively, the “Firm”) seeking to withdraw as counsel for Complainant, Cool Living LLC (“Cool Living” or Complainant). (Dkt. 20.) The Firm asserts in the body of the motion that Respondent’s counsel advised after meeting and conferring that it does not oppose the motion. For the reasons set forth below, the motion is **GRANTED IN PART AND DENIED IN PART** subject to the conditions set forth herein.

In support of its motion, the Firm states, *inter alia*, that:

- 1) Despite efforts to address strategic differences of opinion, irreconcilable differences have arisen between the Firm and Cool Living that materially impact the attorney-client relationship and make the Firm unable to continue its representation;
- 2) The Firm and Cool Living are in dispute as to whether Cool Living has failed to perform its obligations to the Firm;
- 3) The Firm is also filing a motion to withdraw as counsel in the parallel state court proceeding, ALPI U.S.A., INC. et al v. COOL LIVING OY et al, 655504/2025;
- 4) Withdrawal can be accomplished without material adverse effect on the interests of the client in that there are no pending motions, discovery obligations have been satisfied, no outstanding discovery demands are pending and no notices of deposition issued, although ALPI advised that it will seek one deposition of Cool Living and Cool Living has recently indicated it will pursue depositions;
- 5) Cool Living has been given reasonable warning that the Firm will be withdrawing as counsel, and Cool Living indicates that it is seeking substitute counsel;

6) Withdrawal can be accomplished without material adverse effect on the interest of Cool Living or any other party to this litigation. The parties have until June 13, 2026, to conduct discovery, and briefing is not due until July 13, 2026. The Firm has further agreed to take all reasonable steps to facilitate a smooth and efficient transition of its file to substitute counsel or Cool Living;

7) In the interim, all filings shall be sent to Cool Living via mail and email at its last known address: Cool Living LLC, 8 The Green, Suite R, Dover, Delaware 19901, with emails to Tony Hopkins email address (tony@thatcooliving.com) and Anna Farkas email address (anna@thatcooliving.com).

With respect to the applicable legal standard, 46 C.F.R. § 502.23(e) provides that:

If an attorney wishes to withdraw from representing a party, and written consent is not obtained, or if the party is not otherwise represented, the withdrawing attorney shall file an appropriate motion seeking permission to withdraw and provide appropriate reasons for making the motion. Such motion will be decided in consideration of the factors and standards set forth in Rule 1.16 of the American Bar Association's ["ABA"] Model Rules of Professional Conduct ["MRPC"] and by the courts.

MRPC Rules 1.16(b), (c), and (d) provide:

(b) Except as stated in paragraph (c), a lawyer may withdraw from representing a client if:

- (1) withdrawal can be accomplished without material adverse effect on the interests of the client;
- (2) the client persists in a course of action involving the lawyer's services that the lawyer reasonably believes is criminal or fraudulent;
- (3) the client has used the lawyer's services to perpetrate a crime or fraud;
- (4) the client insists upon taking action that the lawyer considers repugnant or with which the lawyer has a fundamental disagreement;
- (5) the client fails substantially to fulfill an obligation to the lawyer regarding the lawyer's services and has been given reasonable warning that the lawyer will withdraw unless the obligation is fulfilled;
- (6) the representation will result in an unreasonable financial burden on the lawyer or has been rendered unreasonably difficult by the client; or
- (7) other good cause for withdrawal exists.

(c) A lawyer must comply with applicable law requiring notice to or permission of a tribunal when terminating a representation. When ordered to do so by a tribunal, a lawyer shall continue representation notwithstanding good cause for terminating the representation.

(d) Upon termination of representation, a lawyer shall take steps to the extent reasonably practicable to protect a client's interests, such as giving reasonable notice to the client, allowing time for employment of other counsel, surrendering papers and property to which the client is entitled and refunding any advance payment of fee or expense that has not been earned or incurred. The lawyer may retain papers relating to the client to the extent permitted by other law.

Based on the Firm's representation that irreconcilable differences have arisen between the Firm and Cool Living that materially impact the attorney-client relationship and make the Firm unable to continue its representation, I find that good cause to withdraw exists in accordance with 46 C.F.R. § 502.23(e) and MRPC 1.16(b)(7). At the same time, in light of the Firm's representation that Respondents contemplate taking one deposition not noticed at the time the motion was filed, and considering that the discovery deadline remains open through June 13, 2026, I find that withdrawal on or before June 13, 2026, cannot be accomplished without material adverse impact on the client as required by MRPC 1.16(b)(1). For this reason, I find good cause has been established for the Firm to withdraw effective June 14, 2026, but that the Firm is required to represent Complainant at any deposition conducted on or before the discovery deadline of June 13, 2026.

According, it is **ORDERED** that the Firm's motion to withdraw is **GRANTED IN PART AND DENIED IN PART** subject to the conditions set forth herein and is not effective until **June 14, 2026**. The firm shall represent Complainant at any deposition conducted on or before the discovery deadline of **June 13, 2026**; It is

FURTHER ORDERED that for all communications occurring through June 13, 2026, the Firm shall remain counsel of record and be noticed accordingly; it is

FURTHER ORDERED that for all communications occurring on or after June 14, 2026, all communications and notices shall be transmitted to Cool Living via mail and email at its last known address: Cool Living LLC, 8 The Green, Suite R, Dover, Delaware 19901, with emails to Tony Hopkins email address (tony@thatcooliving.com) and Anna Farkas email address (anna@thatcooliving.com); It is

FURTHER ORDERED that the Firm shall advise Complainant that it is required to comply with the deadlines set forth in the March 2, 2026, Order Granting Joint Motion for Extension of Time (Dkt. 16), including but not limited to the June 13, 2026, deadline to complete discovery, and that substitution of new counsel is not automatic grounds for further extension absent a showing of good cause; It is

FURTHER ORDERED that the Firm advise Complainant of its duty to secure substitute counsel as soon as possible.

Mary Apostolakos Hervey
Administrative Law Judge

EXHIBIT E

Notices of Deposition of Anna Farkas and Tony

Hopkins (June 5, 2026)

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Cool Living LLC, *Complainant*

v.

ALPI U.S.A., Inc. and ALPI Air & Sea A/S,
Respondents.

DOCKET NO. 25-28

**NOTICE OF DEPOSITION OF ANNA
FARKAS**

PLEASE TAKE NOTICE that, pursuant to 46 C.F.R. § 502.143 and the applicable Rules of Practice and Procedure of the Federal Maritime Commission, Respondents ALPI U.S.A., Inc. and ALPI Air & Sea A/S, by and through their undersigned counsel, will take the deposition upon oral examination of **Anna Farkas**, an officer, director, owner, and/or managing representative of Cool Living LLC, on the date and at the time and place set forth below, before a notary public or other officer authorized to administer oaths pursuant to 46 C.F.R. § 502.142.

Respondents advised Complainant's counsel during the parties' May 29, 2026 meet-and-confer that Respondents intended to seek deposition discovery from Cool Living. The deposition is being taken for purposes of discovery, for use at any hearing in this matter, and for all other purposes permitted under the Commission's rules.

Deponent: Anna Farkas

Date: Thursday, June 11, 2026

Time: 09:30 a.m. Eastern Time. The deposition will be limited to one day of seven hours, unless otherwise stipulated by the parties or ordered by the Presiding Officer pursuant to 46 C.F.R. § 502.143(d)(1).

Place: By remote videoconference, subject to agreement of the parties or order of the Presiding Officer under 46 C.F.R. § 502.143(b)(4), with the link and access instructions to be circulated in advance by the noticing party. Pursuant to 46 C.F.R. § 502.143(b)(4), the deposition is deemed taken at the place where the deponent answers the questions.

Method of Recording: Pursuant to 46 C.F.R. § 502.143(b)(3), the testimony will be recorded by stenographic means. Respondents further give notice that the testimony may also be recorded by audiovisual means in addition to stenographic means. Respondents reserve all rights to use the testimony, transcript, and/or recording for any purpose permitted under 46 C.F.R. § 502.149 and the Commission's rules.

You are invited to attend and examine the deponent as permitted by the Commission's rules.

Dated: June 5, 2026

Respectfully submitted,

MILLER & MARTIN PLLC

By: /s/ Michael P. Kohler
Michael P. Kohler
1180 W. Peachtree Street NW, Suite 2100
Atlanta, Georgia 30309
Telephone: (404) 962-6100
Michael.Kohler@millermartin.com

MARTIN DAHLGAARD ATTORNEY P.C.

By: /s/ Daniel E.L. Bang
Daniel E.L. Bang
45 Main Street, Suite 29
Brooklyn, New York 11202
Telephone: (646) 580-9880
delb@usadenmarklaw.com

Counsel for Respondents

CERTIFICATE OF SERVICE

I hereby certify that on this 5th day of June 2026, a true and correct copy of the foregoing Notice of Deposition was served via electronic mail upon counsel for Complainant—Christopher R. Nolan (chris.nolan@hklaw.com) and Ashleigh T. Higgs (ashleigh.higgs@hklaw.com), Holland & Knight LLP, Counsel for Complainant Cool Living LLC.

HOLLAND & KNIGHT LLP

Christopher R. Nolan
chris.nolan@hklaw.com
Ashleigh T. Higgs
ashleigh.higgs@hklaw.com
Counsel of record for Complainant Cool Living LLC

/s/ Daniel E. L. Bang
Daniel Emil Lindberg Bang

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Cool Living LLC, *Complainant*

v.

ALPI U.S.A., Inc. and ALPI Air & Sea A/S,
Respondents.

DOCKET NO. 25-28

**NOTICE OF DEPOSITION OF TONY
HOPKINS**

PLEASE TAKE NOTICE that, pursuant to 46 C.F.R. § 502.143 and the applicable Rules of Practice and Procedure of the Federal Maritime Commission, Respondents ALPI U.S.A., Inc. and ALPI Air & Sea A/S, by and through their undersigned counsel, will take the deposition upon oral examination of **Tony Hopkins**, an officer, director, owner, and/or managing representative of Cool Living LLC, on the date and at the time and place set forth below, before a notary public or other officer authorized to administer oaths pursuant to 46 C.F.R. § 502.142.

Respondents advised Complainant's counsel during the parties' May 29, 2026 meet-and-confer that Respondents intended to seek deposition discovery from Cool Living. The deposition is being taken for purposes of discovery, for use at any hearing in this matter, and for all other purposes permitted under the Commission's rules.

Deponent: Tony Hopkins

Date: Friday, June 12, 2026

Time: 09:30 a.m. Eastern Time. The deposition will be limited to one day of seven hours, unless otherwise stipulated by the parties or ordered by the Presiding Officer pursuant to 46 C.F.R. § 502.143(d)(1).

Place: By remote videoconference, subject to agreement of the parties or order of the Presiding Officer under 46 C.F.R. § 502.143(b)(4), with the link and access instructions to be circulated in advance by the noticing party. Pursuant to 46 C.F.R. § 502.143(b)(4), the deposition is deemed taken at the place where the deponent answers the questions.

Method of Recording: Pursuant to 46 C.F.R. § 502.143(b)(3), the testimony will be recorded by stenographic means. Respondents further give notice that the testimony may also be recorded by audiovisual means in addition to stenographic means. Respondents reserve all rights to use the testimony, transcript, and/or recording for any purpose permitted under 46 C.F.R. § 502.149 and the Commission's rules.

You are invited to attend and examine the deponent as permitted by the Commission's rules.

Dated: June 5, 2026

Respectfully submitted,

MILLER & MARTIN PLLC

By: /s/ Michael P. Kohler
Michael P. Kohler
1180 W. Peachtree Street NW, Suite 2100
Atlanta, Georgia 30309
Telephone: (404) 962-6100
Michael.Kohler@millermartin.com

MARTIN DAHLGAARD ATTORNEY P.C.

By: /s/ Daniel E.L. Bang
Daniel E.L. Bang
45 Main Street, Suite 29
Brooklyn, New York 11202
Telephone: (646) 580-9880
delb@usadenmarklaw.com

Counsel for Respondents

CERTIFICATE OF SERVICE

I hereby certify that on this 5th day of June 2026, a true and correct copy of the foregoing Notice of Deposition was served via electronic mail upon counsel for Complainant—Christopher R. Nolan (chris.nolan@hklaw.com) and Ashleigh T. Higgs (ashleigh.higgs@hklaw.com), Holland & Knight LLP, Counsel for Complainant Cool Living LLC.

HOLLAND & KNIGHT LLP

Christopher R. Nolan
chris.nolan@hklaw.com
Ashleigh T. Higgs
ashleigh.higgs@hklaw.com
Counsel of record for Complainant Cool Living LLC

/s/ Daniel E. L. Bang
Daniel Emil Lindberg Bang

EXHIBIT F

Cool Living Motion to quash Meet-and-Confer Email (June 8, 2026)

Cool Living LLC v. ALPI U.S.A., Inc, and ALPI Air & Sea A/S, FMC Docket No. 25-28 — Meet and Confer Regarding Notices of Deposition of Hopkins and Farkas

Tony Hopkins <tony@thatcooliving.com>

8 June 2026 at 20:49

To: delb@usadenmarklaw.com, michael.kohler@millermartin.com

Cc: "chris.nolan@hklaw.com" <chris.nolan@hklaw.com>, "Ashleigh.Higgs@hklaw.com" <ashleigh.higgs@hklaw.com>

Hello Daniel and Michael,

I write as a representative of Complainant Cool Living LLC in FMC Docket No. 25-28. My Notice of Appearance was filed with the Secretary on June 8, 2026.

Cool Living LLC writes to confer under 46 C.F.R. § 502.71(a) regarding the Notices of Deposition of Tony Hopkins and Anna Farkas served June 5, 2026. The Notices were forwarded to Cool Living by its counsel by email on the evening of Saturday, June 6, 2026 and were only seen by Cool Living's representatives on Monday morning, June 8, 2026 due to the intervening weekend and ongoing summer travel.

Cool Living's position is that the Notices are untimely and lack the procedural requirements necessary to support depositions. The specific grounds will be set out in Cool Living's anticipated Motion to Quash and for Protective Order with no ability to re-notice, which Cool Living intends to file under 46 C.F.R. §§ 502.69, 502.71, 502.141(j), and 502.143.

Respondents have not indicated any necessity for these depositions in this proceeding, despite having had ample time to pursue them. As ALJ Erin Wirth has stated, "a scheduling order is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril." The Presiding Officer's Order on Motion to Withdraw, served June 8, 2026, further confirmed that "substitution of new counsel is not automatic grounds for further extension." Respondents are out of time on the deposition issue.

Cool Living LLC asks whether Respondents will:

(a) agree to withdraw the Notices of Deposition of Tony Hopkins and Anna Farkas and agree not to re-notice depositions of either witness in this proceeding; or

(b) oppose Cool Living LLC's anticipated Motion to Quash and for Protective Order.

Please confirm Respondents' position by the close of business on **Tuesday, June 9, 2026 (5:00 PM Eastern)**.

The noticed deponents will not be able to appear on June 11 or June 12, 2026 absent withdrawal of the Notices or further order of the Presiding Officer.

Regards,
Tony Hopkins
Representative of Complainant Cool Living LLC

+358449159319

tony@thatcooliving.com

CONFIDENTIALITY NOTE: The information contained in this e-mail message and any attachments is intended only for the use of the individual or entity to whom it is addressed. If the reader of this message is not the intended recipient, you are hereby notified that any dissemination, distribution or copy of this message or its attachments is strictly prohibited. If you received this e-mail in error, please immediately notify us by telephone or email and delete the message. Thank you.

EXHIBIT G

Respondent's reply to the Motion to quash Meet-and-Confer Email
(June 9, 2026)

Cool Living LLC v. ALPI U.S.A., Inc, and ALPI Air & Sea A/S, FMC Docket No. 25-28 — Meet and Confer Regarding Notices of Deposition of Hopkins and Farkas

chris.nolan@hklaw.com <chris.nolan@hklaw.com>

9 June 2026 at 00:53

To: "daniel.bang@usadenmarklaw.com" <daniel.bang@usadenmarklaw.com>, "michael.kohler@millermartin.com"

<michael.kohler@millermartin.com>

Cc: "tony@thatcooliving.com" <tony@thatcooliving.com>

Dear Daniel and Michael,

I write in response to your email received on 3:51 PM Central, below. The June 8, 2026, Order does not prevent ALPI from responding to Mr. Tony Hopkins. Rather, Mr. Hopkins filed a Notice of Appearance in the FMC Action today. Responding to the email of Mr. Hopkins, with continued email copy to H&K via the undersigned, is appropriate, as the June 8 Order, provides, **"FURTHER ORDERED** that for all communications occurring through June 13, 2026, the Firm shall remain counsel of record and be noticed accordingly."

Concerning the substance of your email, I have forwarded your email to Cool Living, as sought below. Mr. Hopkins or the undersigned, or both of us, will respond tomorrow.

Best regards, Chris

Christopher Nolan | Holland & Knight

Partner

Holland & Knight LLP

787 Seventh Avenue, 31st Floor | New York, NY 10019

Office: 212.513.3307 | Cell: 646-284-8996

chris.nolan@hklaw.com | www.hklaw.com

[Add to address book](#) | [View professional biography](#)

From: Daniel Bang <daniel.bang@usadenmarklaw.com>**Sent:** Monday, June 8, 2026 3:51 PM**To:** Nolan, Christopher R (NYC - X73307, CHI - X66515) <chris.nolan@hklaw.com>; Higgs, Ashleigh T (WAS - X75683) <Ashleigh.Higgs@hklaw.com>**Cc:** michael.kohler <michael.kohler@millermartin.com>**Subject:** Fwd: Cool Living LLC v. ALPI U.S.A., Inc, and ALPI Air & Sea A/S, FMC Docket No. 25-28 — Meet and Confer Regarding Notices of Deposition of Hopkins and Farkas

[External email]

Dear Chris and Ashleigh,

We write in response to the message below, which reached us via your client. Because the Presiding Officer's June 8, 2026 Order provides that Holland & Knight ("H&K") remains counsel of record through June 13, 2026 and shall represent Cool Living at any deposition conducted on or before the June 13 discovery deadline, we are directing this response to you and ask that you relay it to your client. We treat this email as Respondents' response to Cool Living's conferral under 46 C.F.R. § 502.71(a).

Respondents do not agree to withdraw the deposition notices of Tony Hopkins and Anna Farkas and intend to proceed. Discovery remains open through June 13, 2026.

During our May 29 meet-and-confer concerning H&K's motion to withdraw, the parties discussed extending the case schedule and Respondents made clear that they would not waive or prejudice their discovery rights and that they intended to take deposition discovery from Cool Living. H&K then filed its motion to withdraw but did not file the extension. Respondents served the deposition

notices accordingly, within the discovery period set by that court-ordered schedule, which remains open through June 13, 2026. We therefore do not agree that the notices are untimely or procedurally defective, and Respondents reserve all rights, including the right to oppose any motion to quash or for a protective order. Respondents remain willing to accommodate reasonable scheduling issues and to proceed with the schedule extension discussed during the meet-and-confer and reflected in the draft we received, without waiving their position that the deposition notices are proper and that the depositions should proceed.

The two depositions should proceed over two days within the discovery period, as they cannot reasonably be completed in a single day. As a scheduling accommodation only, and without waiving Respondents' position that the notices are proper, Respondents are willing to move Ms. Farkas's deposition to Friday, June 12 and Mr. Hopkins's deposition to Saturday, June 13, both within the discovery window, by videoconference or in person at a mutually convenient location. Michael and I are available beginning at 9:30 AM on each day.

Cool Living's email asserts only a blanket unavailability on June 11 and 12, without explanation or supporting detail. To the extent Ms. Farkas has a genuine, specific conflict on June 12, we are willing to discuss a reasonable start time that day; the deposition must, however, be completed within the discovery period.

Please confirm by close of business on Tuesday, June 9 whether Cool Living will proceed with Ms. Farkas's deposition on June 12 and Mr. Hopkins's deposition on June 13, as proposed above. Respondents reserve all rights, including the right to seek appropriate relief should the witnesses fail to appear within the discovery period.

Daniel Emil Lindberg Bang

Advokat (L) (Denmark) | Attorney at Law (New York)

USA DENMARK LAW | www.usadenmarklaw.com

(+45) 32 75 93 31 | (+1) 646-580-9880

USA Denmark Law Advokat ApS | Martin Dahlgaard Attorney P.C.

[Quoted text hidden]

NOTE: This e-mail is from a law firm, Holland & Knight LLP ("Holland & Knight"), and is intended solely for the use of the individual(s) to whom it is addressed. If you believe you received this e-mail in error, please notify the sender immediately, delete the e-mail from your computer and do not copy or disclose it to anyone else. If you are not an existing client of Holland & Knight, do not construe anything in this e-mail to make you a client unless it contains a specific statement to that effect and do not disclose anything to Holland & Knight in reply that you expect it to hold in confidence. If you properly received this e-mail as a client, co-counsel or retained expert of Holland & Knight, you should maintain its contents in confidence in order to preserve the attorney-client or work product privilege that may be available to protect confidentiality.

EXHIBIT H

Cool Living Reply Objections (June 10, 2026)

Cool Living LLC v. ALPI U.S.A., Inc, and ALPI Air & Sea A/S, FMC Docket No. 25-28 — Meet and Confer Regarding Notices of Deposition of Hopkins and Farkas

Tony Hopkins <tony@thatcooliving.com>

10 June 2026 at 01:17

To: delb@usadenmarklaw.com, michael.kohler@millermartin.com

Cc: "Ashleigh.Higgs@hklaw.com" <Ashleigh.Higgs@hklaw.com>, "chris.nolan@hklaw.com" <chris.nolan@hklaw.com>

Dear Daniel and Michael,

I note that you did not respond to my June 8 email directly but instead directed your June 8 response to Holland & Knight and asked the Firm to relay it.

Cool Living objects to the Notices of Deposition of Tony Hopkins and Anna Farkas served June 5, 2026. The Notices are untimely, defective and ambiguous for the reasons set out below.

Neither the Notices nor Respondents' June 8 reply draws any distinction between the two distinct kinds of deposition: an individual deposition of a witness in his or her personal capacity, and an organizational deposition that binds the company.

If Respondents intend an organizational deposition under 46 C.F.R. § 502.143(b)(6), the Notices are defective. That rule requires that the entity be named as the deponent and that the notice "describe with reasonable particularity the matters for examination." The Notices name two individuals rather than Cool Living LLC, and they contain no topics at all. Under the same rule, the entity — not Respondents — designates who will testify, and the designee must be allowed time to prepare. Respondents cannot themselves designate Mr. Hopkins and Ms. Farkas as the company's witnesses.

Because the Notices specify nothing, none of Mr. Hopkins, Ms. Farkas, or Cool Living can know whether each is being asked to give personal testimony or to speak for and bind the company. That distinction controls who must appear, how to prepare, the permissible scope of examination, and the binding effect of the answers.

Please state whether Respondents seek organizational testimony of Cool Living LLC under § 502.143(b)(6), or individual testimony of Mr. Hopkins and Ms. Farkas in their personal capacities. The Notices do not make that distinction clear.

Respondents have shown no necessity for either. The only prior indication of any interest came during the May 29, 2026 meet-and-confer on Holland & Knight's motion to withdraw. According to Holland & Knight's written summary of that call, "ALPI counsel inquired if an extension of time would be advisable in light of the June 13 closure of discovery as they have one deposition they are interested in taking, for Tony Hopkins. As to any depositions in the FMC action, Mr. Nolan advised that would be a matter for substituted counsel or Cool Living to address." That is the extent of it: a brief expression of interest in deposing Mr. Hopkins during a conference about counsel's withdrawal. Respondents provided no date, no place, and no other information required for a deposition notice, and expressed no intent to depose Ms. Farkas or Cool Living before that point.

Cool Living does not regard a further schedule extension as necessary. Withdrawing counsel circulated a draft extension within its withdrawal correspondence, without first advising Cool Living or awaiting a response, and Cool Living did not agree that a one-month extension was advisable based on nothing more than a brief stated interest in deposing Mr. Hopkins, raised only in the context of counsel's withdrawal. Respondents previously obtained an order extending their time to answer, and discovery has already been extended once. Respondents offer no reason for having waited until the withdrawal conference to raise any deposition. Respondents had ample time to pursue deposition discovery earlier in the schedule and did not. There is no excuse for waiting to send notices until the end of discovery, and you cannot now blame Cool Living for the urgency the respondents have created.

The Notices also condition the place of the deposition: "by remote videoconference, subject to agreement of the parties or order of the Presiding Officer under 46 C.F.R. § 502.143(b)(4)." Cool Living has not agreed to a remote videoconference, and no order has issued. The Notices further designate no officer authorized under § 502.142(b) to take the testimony of a deponent located abroad, and no stipulation or order has addressed the manner of taking such testimony. Both deponents reside in different foreign countries as you are well aware. The Notices therefore cannot proceed as written and Respondents' reply does not cure these defects.

As stated in my June 8 email and further above, the noticed deponents are not able to appear on the noticed dates absent withdrawal of the Notices or an order of the Presiding Officer. Cool Living reserves all rights including proceeding with the Motion for a Protective Order, and in the alternative to strike or quash the Notices.

Regards,
Tony Hopkins
Representative of Complainant Cool Living LLC

+358449159319
tony@thatcooliving.com